

The Indian Tolls (Army and Air Force) Rules, 1942

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[The Indian Tolls \(Army and Air Force\) Rules, 1942](#)

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[In exercise of the powers conferred by sub-sections \(1\) and \(2\) of section 7 of the Indian Tolls \(Army and Air Force\) Act, 1901 \(](#)

[2 of 1901](#)

[\), and in suppression of the rules published with the notification of the Government of India in the late Military Department No. 1904, dated the 14th November, 1903 the Central Government is pleased to make the following rules, the same having been previously published as required by sub-section \(3\) of the said section, namely : -](#)

[1.](#)

[\(1\)](#)

These rules may be called The Indian Tolls (Army and Air Force) Rules, 1942.

(2)

They extend to the whole of India.

2.

Save as hereinafter otherwise provided in rule 3, where exemption from the payment of tolls is claimed under the Indian Tolls (Army and Air Force) Act, 1901 (

2 of 1901

), in respect of any person or body of persons or any property, a pass, in the Form annexed, shall be presented on the demand of the person authorised to demand the tolls.

3.

(1)

No passes shall be required in the case of -

(a)

Officers, soldiers and airmen of -

(i)

the Regular Forces,

(ii)

any Irregular Corps, or

(iii)

Armed Forces maintained by Part B States, in uniform when on duty or on the march;

(b)

members of the Territorial Army or of the National Cadet Corps in uniform when on duty or when proceeding to or returning from duty;

(c)

officers, soldiers and airmen of the Indian Reserve forces in uniform when proceeding from their place of residence on being called out for service, training or muster or when proceeding back to their place of residence after such service, training or muster;

(d) authorised followers of -

(i)

the Regular Forces,

(ii)

the Territorial army or the National Cadet Corps,

(iii)

Any Irregular Corps, or

(iv)

Armed Forces maintained by Part B States, when they accompany and body of such Forces or Corps on the march;

(e)

members of the families of officers, soldiers, airmen or authorised followers of -

(i)

the Regular Forces, or

(ii)

any Irregular Corps, when accompanying any body of troops on duty or on the march;

(f)

prisoners under military or air force escort in uniform;

(g)

the carriages, horses and baggage, and the persons (if any) employed in driving the carriages or in carrying the baggage, of any persons exempted under any of the foregoing clauses, when such carriages, horses, baggage, or persons accompany the persons so exempted under the circumstances mentioned in those clauses, respectively;

(h)

carriages and horses belonging to the Government or employed in the Indian military or air force service and all persons in charge of or accompanying the same, when conveying any such persons as herein before in this rule mentioned, or

when conveying baggage or stores;

(i)
animals accompanying any body of troops which are intended to be slaughtered for food or kept for any purpose connected with the provisioning of such troops; and

(j)
persons in charge of any carriage, horse or animal exempted under any of the foregoing clauses when accompanying the same under the circumstances mentioned in those clauses respectively.

(2)
No passes shall be required in the case of officers of the Regular Forces, the Territorial Army, the National Cadet Corps or of any Irregular Corps or of any Armed Forces maintained by Part B States, when travelling on duty, though not in uniform:

Provided that the officer so travelling shall furnish in writing to the person authorised to demand toll his name, rank and a statement that he is travelling on duty.

4.
Every pass shall be signed by the Commanding Officer of the regiment, corps, unit, or detachment concerned, or by a station staff officer.

Form Of Pass

[Issued under the Indian Tolls (Army and Air Force), Act, 1901 (

2 of 1901

)]
This pass issued subject to the rules on the reverse in respect of the persons and property specified in the annexed schedule, and exempt from the payment of tolls on the occasion of:-

Embarking or being shipped at.....

Disembarking or being landed at.....

proceeding from.....to up to the 20.....

It will remain in force from.....

Schedule

Number

Name of Corps

Remarks

Part I

PERSON

Officers.....

Soldiers.....

Airman.....

Members of the Territorial Army
or the National Cadet Corps.....

Authorised followers of Forces or
Corps.....

Members of families of officers,
soldiers, airman or authorized
followers.....

Persons in charge of carriages,
horses, slaughter animals or
baggage.....

Part II

PROPERTY

Horses as defined in the Act*

Carriages.....

Slaughter animals.....

Baggage.....

*"Horse" includes a mule and any beast of whatever description which is used for burden or draught for carrying persons. Section 2, clause(e).

Place.....

Date.....

(Sd)

Commanding Officer or

Station Staff Officer

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